



CHAPTER lix.

An Act to confer further borrowing powers upon the South Staffordshire Mond Gas (Power and Heating) Company. A.D. 1917.
[20th December 1917.]

WHEREAS by the South Staffordshire Mond Gas (Power and Heating) Company's Act 1901 (in this Act referred to as "the Act of 1901") the South Staffordshire Mond Gas (Power and Heating) Company (in this Act referred to as "the Company") were incorporated and authorised to manufacture supply sell and distribute within a district described in the Act of 1901 and therein called "the South Staffordshire and East Worcestershire District" the producer gas commonly known as Mond gas and any development of Mond gas approved by the Board of Trade and any other producer gas so approved for the purposes of motive or other power heating or any other purpose to which such gases could be applied except that such gases were not to be supplied or used for the purposes of illumination and to do all acts and things necessary or proper for or incidental to the manufacture supply sale and distribution of the said gases for the purposes aforesaid and carrying into effect the objects of the Company as described in the Act of 1901:

And whereas by the South Staffordshire Mond Gas (Power and Heating) Company's Act 1913 (in this Act referred to as "the Act of 1913") the Company were authorised (inter alia) to issue one-half of the share capital authorised by the Act of 1901 as preference capital entitled to a cumulative dividend at a rate not exceeding the rate of six pounds per centum per annum and by agreement with the holders thereof to redeem any portion of the five per centum debenture stock created and issued by

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A.D. 1917^s the Company under the powers of the Act of 1901 or to substitute preference shares therefor:

And whereas the following is a statement of the share and loan capital which the Company are authorised to create and issue or raise by the said Acts and of the amounts of such capital which had been created issued and raised and which the Company had power to create issue and raise at the time of the passing of the Act next hereinafter mentioned:—

SHARE CAPITAL.

Description of Capital.	Maximum Dividend authorised.	Nominal Value of each Share.	Amount authorised.	Amount issued and raised.	Amount remaining to be issued.
Ordinary - - -	10 per cent.	£ 10	£ 500,000	£ 340,712	£ 159,288
Cumulative Preference -	6 per cent.	10	500,000	82,500	417,500

LOAN CAPITAL.

Description.	Amount authorised.	Amount issued.	Amount raised.	Amount remaining to be issued.
5 per cent. Debenture Stock -	£ 333,333	£ 128,330	£ 107,830	£ 205,003

And whereas by the South Staffordshire Mond Gas (Power and Heating) Company's Act 1917 (in this Act referred to as "the Act of 1917") in order to enable the Company to extend their works to meet urgent national requirements the directors of the Company were authorised to raise for the purposes of the Company's undertaking either by borrowing on mortgage of the undertaking or by the creation and issue of debenture stock or partly by either of such means the sum of two hundred and five thousand pounds irrespective of the amount of the capital of the Company at the time actually raised by shares or stock:

And whereas the Company have not raised or borrowed any money since the passing of the Act of 1917 and by reason of the financial position resulting from the present war the

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Company are unable to raise the moneys required for the said extensions of their works under their existing powers: A.D. 1917.

And whereas the Company have paid all interest due on the debenture stock created and issued as aforesaid but dividends have only been paid on the ordinary shares of the Company at the respective rates of one per centum two-and-a-half per centum and one-and-a-quarter per centum per annum for the years one thousand nine hundred and eleven one thousand nine hundred and twelve and one thousand nine hundred and thirteen respectively and on the preference shares of the Company at the rate of six per centum per annum for the years one thousand nine hundred and fourteen and one thousand nine hundred and fifteen respectively:

And whereas the Minister of Munitions is prepared to make to the Company the advances necessary to enable the Company to carry out the said extensions on the security of debenture stock of the Company ranking in priority to the existing debenture stock of the Company:

And whereas for the purpose of enabling the Company to issue such debenture stock to the Minister of Munitions it is expedient that the present powers of the Company with reference to borrowing money by the creation and issue of debenture stock should be amended as by this Act provided:

And whereas the holders of more than three-fourths in value of the existing debenture stock of the Company have consented to the priority given by this Act to the money to be borrowed or raised under the authority thereof and to the interest thereon:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the South Staffordshire Mond Gas (Power and Heating) Company's (No. 2) Act 1917 and the South Staffordshire Mond Gas (Power and Heating) Acts 1901 to 1917 and this Act may be cited together as the South

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2.—(1) The directors of the Company may without any further or other authority than is given by this section and at such times in such manner and on such terms as they may think fit raise for the purposes of their undertaking all or any part of the sum of two hundred and five thousand pounds which they are authorised to raise by section 2 of the Act of 1917 by the creation and issue to the Minister of Munitions or to such person or persons or in such manner as the Minister shall direct of debenture stock of the Company to be called Prior Lien Debenture Stock and which shall both as to principal and interest be a first charge (in priority to any mortgages debentures or debenture stock of the Company issued or to be issued and the interest thereon) upon the general undertaking of the Company Provided that such Prior Lien Debenture Stock shall not operate as a charge on superfluous lands of the Company when sold or affect any specific charge on such lands.

(2) Any debenture stock issued by the Company under the powers of this Act shall be issued as redeemable stock and shall be redeemed at such time or times not being in any case later than the expiration of a period of fifteen years from the date of the issue thereof as may be agreed upon between the Minister and the Company.

(3) Such stock when issued to the Minister shall not be transferable but this provision shall not be deemed to prevent the realisation or enforcement by the Minister of any security or rights given to or conferred upon him for or in respect of any loan or advance made by the Minister to the Company in the event of there being any breach by the Company of any term or condition on which any such loan or advance shall have been made.

(4) All debenture stock issued under the powers of this Act shall as and when the same is redeemed be forthwith cancelled and from time to time as and when such stock or any part thereof is redeemed any powers of borrowing money conferred upon the Company by the South Staffordshire Mond Gas (Power and Heating) Acts 1901 to 1917 and which shall have been exercised by the creation and issue of such stock shall be deemed to be revived to the extent of the amount of such stock which

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shall have been redeemed and the Company may thereupon re-borrow money and create and issue debenture stock accordingly but under and subject to the provisions of the South Staffordshire Mond Gas (Power and Heating) Acts 1901 to 1917 so far as the same are applicable. A.D. 1917.

3. Notwithstanding anything contained in this Act the Company shall not under the powers of this Act raise or borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained. Restriction on raising money during present war.

4. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act

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